

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1307

By: Daniels of the Senate

and

Lepak of the House

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9 An Act relating to the Oklahoma Historical Society;
10 amending 53 O.S. 2021, Sections 1.18, 171, and 201C,
11 as amended by Section 1, Chapter 213, O.S.L. 2022 (53
12 O.S. Supp. 2025, Section 201C), which relate to the
13 dispensation of funds; removing certain prohibition
14 on use of funds; updating statutory language;
15 updating statutory references; and providing an
16 effective date.

17 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

18 SECTION 1. AMENDATORY 53 O.S. 2021, Section 1.18, is
19 amended to read as follows:

20 Section 1.18. The Oklahoma Historical Society shall dispense
21 funds for historical purposes only as ~~defined~~ provided by ~~paragraph~~
22 ~~6 of Section 6 of this act~~ the Oklahoma Historical Preservation Act.

23 The Oklahoma Historical Society may enter into contracts with other
24 state agencies or nonprofit corporations holding a valid exemption
25 from taxation issued pursuant to Section 501(a) of the Internal
26 Revenue Code of 1986, as amended, and listed as an exempt

1 organization in Section 501(c)(3) of the Internal Revenue Code of
2 1986, ~~of the United States~~, as amended, or with individuals or
3 associations pursuant to statutory requirements.

4 ~~Funds shall not be applied, donated or used directly or~~
5 ~~indirectly for the use, benefit or support of any sect, church,~~
6 ~~denomination or system of religion, or for the use, benefit or~~
7 ~~support of any priest, preacher, minister, or other religious~~
8 ~~teacher or dignitary, or sectarian institution as such.~~

9 The Oklahoma Historical Society shall provide opportunity to
10 organizations to submit written applications to be received and
11 acted upon by the Oklahoma Historical Society. At the conclusion of
12 the contract, each state agency, nonprofit corporation, individual,
13 or association shall provide the Oklahoma Historical Society with
14 proof of fulfillment of the contract in proper order and ~~must~~ shall
15 be affirmed on the proper form, provided by the Oklahoma Historical
16 Society, by the managing officers of the state agency, nonprofit
17 group, association, or individual making the contract.

18 SECTION 2. AMENDATORY 53 O.S. 2021, Section 171, is
19 amended to read as follows:

20 Section 171. The Oklahoma Arts Council shall dispense funds for
21 arts purposes only. The Oklahoma Arts Council shall enter into
22 contracts with other state agencies or nonprofit corporations
23 holding a valid exemption from taxation issued pursuant to Section
24 501(a) of the Internal Revenue Code, ~~1954~~ of 1986, as amended, and

1 listed as an exempt organization in Section 501(c)(3) of the
2 Internal Revenue Code, ~~1954, of the United States~~ of 1986, as
3 amended. These nonprofit corporations must demonstrate that the
4 goods and services provided meet the intent of the state policy
5 provided in ~~this act~~ Section 162 of this title.

6 ~~Funds shall not be applied, donated or used directly or~~
7 ~~indirectly for the use, benefit or support of any sect, church,~~
8 ~~denomination or system of religion, or for the use, benefit, or~~
9 ~~support of any priest, preacher, minister, or other religious~~
10 ~~teacher or dignitary, or sectarian institution as such.~~

11 The Oklahoma Arts Council shall provide opportunity, by public
12 notices, to all organizations interested in providing these goods
13 and services, who will submit written applications to be received
14 and acted upon by the Oklahoma Arts Council. At the conclusion of
15 the contract, each state agency or nonprofit corporation shall
16 provide the Oklahoma Arts Council with proof of fulfillment of the
17 contract in proper order and ~~must~~ shall be affirmed on the proper
18 form, provided by the Oklahoma Arts Council, by the managing
19 officers of the state agency or nonprofit group making the contract.

20 SECTION 3. AMENDATORY 53 O.S. 2021, Section 201C, as
21 amended by Section 1, Chapter 213, O.S.L. 2022 (53 O.S. Supp. 2025,
22 Section 201C), is amended to read as follows:

23 Section 201C. A. The J.M. Davis Memorial Commission shall have
24 power and authority to:

1 1. Appoint and to fix the salaries and duties of the
2 professional and administrative employees and curators as may be
3 necessary to carry out the purpose of ~~this act~~ 201A et seq. of this
4 title;

5 2. Appoint an executive director who shall serve at the
6 pleasure of the Commission. A member of the Commission may be
7 appointed as the executive director; provided, if a member of the
8 Commission is so appointed, the member shall resign as a member of
9 the Commission and the vacancy shall be filled in the same manner as
10 are original appointments;

11 3. Provide for the proper housing, protection and display of
12 the J.M. Davis Gun Collection and other historical artifacts; and

13 4. Enter into contracts for services to be performed in
14 furtherance of the authorized activities and duties of the J.M.
15 Davis Memorial Commission with other state agencies or nonprofit
16 corporations holding a valid exemption from taxation issued pursuant
17 to Section 501(a) of the Internal Revenue Code of 1986, as amended,
18 and listed as an exempt organization in Section 501(c)(3) of the
19 Internal Revenue Code of 1986, as amended, or with individuals or
20 associations pursuant to statutory requirements.

21 B. ~~Funds of the J.M. Davis Memorial Commission shall not be~~
22 ~~applied, donated, or used directly or indirectly for the use,~~
23 ~~benefit, or support of any sect, church, denomination, or system of~~
24 ~~religion, or for the use, benefit, or support of any priest,~~

1 ~~preacher, minister, or other religious teacher or dignitary, or~~
2 ~~sectarian institution as such.~~ The J.M. Davis Memorial Commission
3 shall provide opportunity to organizations to submit written
4 applications to be received and acted upon by the J.M. Davis
5 Memorial Commission. At the conclusion of the contract, each state
6 agency, nonprofit corporation, individual, or association shall
7 provide the J.M. Davis Memorial Commission with proof of fulfillment
8 of the contract in proper order and ~~must~~ shall be affirmed on the
9 proper form, provided by the J.M. Davis Memorial Commission, by the
10 managing officers of the state agency, nonprofit group, association,
11 or individual making the contract.

12 C. Any agreements or contracts providing for the employment of
13 persons or to purchase property or equipment or the construction of
14 any facilities shall not be authorized unless necessary funds have
15 been appropriated by the Legislature or have been otherwise obtained
16 from gifts, grants or contributions actually received by the
17 Commission.

18 SECTION 4. This act shall become effective November 1, 2026.
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20 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS AND BUDGET, dated
21 04/23/2026 - DO PASS.
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